

22STCV14367 22STCV14367

County: los-angeles

Division: Civil Law and Motion

Department: 309

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Case Number: 22STCV14367 Hearing Date: August 19, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

309

TENTATIVE RULING

KAREN JEAN ZIEGENBEIN

vs.

JANET LYNNE

SAFFARI

Case

No.: 22STCV14367

Hearing Date: August 19, 2026

Plaintiff's

motion for attorney fees totaling \$161,922 is GRANTED.

On 2/2/2024, the Court entered its Statement of Decision
in this case.

On

7/20/2025, Plaintiff moves for attorney fees.

The
motion is unopposed.

Legal Standard

The party
claiming attorneys' fees must establish entitlement to such fees and the reasonableness of the fees claimed. (*Civic Western Corporation v. Zila Industries, Inc.* (1977) 66 Cal.App.3d 1, 16.) "Except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties[.]" (CCP § 1021.)

"It is well
established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion." (*Melnyk v. Robledo* (1976) 64 Cal.App.3d 618, 623.)
In exercising its discretion, the court should
consider a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in handling the matter, the attention given, the success or failure, and the resulting judgment. (*Id.*)

In
determining what constitutes a reasonable compensation for an attorney who has rendered services in connection with a legal proceeding, the court may and should consider the nature of the litigation, its difficulty, the amount involved, the skill required and the skill employed in handling the litigation, the attention given, the success of the attorneys' efforts, their learning, their age, and their experience in the particular type of work demanded the intricacies and importance of the litigation, the labor and necessity for skilled legal training and ability in trying the cause, and the time consumed. (*Stokus v. Marsh* (1990) 217 Cal.App.3d 647, 657.)

In
determining the proper amount of fees to award, courts use the lodestar method. The lodestar figure is

calculated by multiplying the total number of reasonable hours expended by the reasonable hourly rate. “Fundamental to its determination ... [is] a careful compilation of the time spent and reasonable hourly compensation of each attorney ... in the presentation of the case.” (Serrano v. Priest (1977) 20 Cal.3d 25, 48 (Serrano III).) A reasonable hourly rate must reflect the skill and experience of the attorney. (Id. at 49.) “Prevailing parties are compensated for hours reasonably spent on fee-related issues. A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether.” (Serrano v. Unruh (1982) 32 Cal.3d 621, 635 (Serrano IV); see also Weber v. Langholz (1995) 39 Cal.App.4th 1578, 1587 (“The trial court could make its own evaluation of the reasonable worth of the work done in light of the nature of the case, and of the credibility of counsel’s declaration unsubstantiated by time records and billing statements.”))

Reasonable

attorney fees should be based on an objective standard of reasonableness, i.e., the market value of services rendered, not on some notion of cost incurred. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1090.) The value of legal services performed in a case is a matter in which the trial court has its own expertise. (Id. at 1096.) The trial court may make its own determination of the value of the services contrary to, or without the necessity for, expert testimony. (Id.) The trial court makes its determination after consideration of a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case. (Id.)

Discussion

Plaintiff

seeks \$161,922 in attorney fees.

Rates

Alisa

E. Sandoval claims an hourly rate of \$375/hour. After consideration of the

relevant factors, including the nature of the litigation, the attention given, and the success of the attorneys' efforts, the Court finds \$375/hour to be a reasonable hourly rate. (Stokus, supra, 217 Cal.App.3d at p. 657.)

Hours

Ms.

Sandoval claims 163.5 hours litigating this action.

After

review, the Court finds the hours claimed to be reasonable and necessary to the litigation. The Court takes Plaintiff's non-opposition to be a concession to the motion on the merits.

Based on the foregoing, Plaintiff's motion for attorney fees totaling \$161,922 is granted.

It is so ordered.

Dated: August
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.